

PURPOSE: To define harassment of sexual orientation and gender identity.

INTRODUCED BY: Senator Colley

BE IT RESOLVED BY THE MISSISSIPPI SCHOOL FOR MATHEMATICS AND SCIENCE:

SECTION ONE (DEFINITIONS):

Sexual orientation: How an individual self identifies in the gender or genders that they are attracted to.

Gender identity: An individual's internal sense or perception of their gender, which can be the same as or different from their sex assigned at birth."

Harassment: Unwelcomed conduct verbal, physical, or written conduct.

SECTION TWO (REASONING):

The student handbook specifically describes several types of harassment that can be reported. This section does not have a section regarding the harassment of someone based on sexual orientation and gender identity. As many students at MSMS (Mississippi School for Mathematics and Science) identify as LGBTQ+, it is imperative to have written confirmation that harassment over sexual orientation or gender identity can be reported.

Students should not be prone to harassment of any means, and there should not be an opportunity for excuses regarding harassment over sexual orientation and gender identity. This bill was recommended to me by a fellow student who expressed concerns regarding the lack of definition. This bill aims to eliminate the gray area regarding this issue.

This bill is also supported by supreme court case Bostock vs Clayton County, Georgia. This supreme court case ruled that firing individuals based on transgender status and sexual orientation violates Title VII's prohibition on discrimination based on sex. While this case focused mainly on work environments, the same concepts should apply to academic environments. This bill aims to continue to make MSMS a safe space for students of a variety of backgrounds.

Note: The decision to define Sexual Orientation and Gender Identity Harassment as a different section from sexual harassment was made to minimize changes to the student handbook and definitions regarding sexual harassment.

SECTION THREE (SPECIFIC CHANGE):

On pages 23, 24, and 25 of the student handbook (pages 18, 19, and 20 in the pdf), the following will be changed.

ANTI-HARASSMENT

General statement of policy

The Mississippi School for Mathematics and Science is committed to providing all students and adults with a safe and supportive school environment. Members of the school community are expected to treat each other with mutual respect.

Harassment is a form of unlawful discrimination as well as disrespectful behavior, which will not be tolerated.

It is hereby the policy of The Mississippi School for Mathematics and Science to oppose and prohibit, without qualification, unlawful harassment based on race, color, religion (creed), national origin, marital status, sex or disability.

Any unlawful harassment of a member of the school community by another member of the school community is a violation of this policy.

The Mississippi School for Mathematics and Science shall act to investigate all complaints of harassment, formal or informal, verbal or written, and to discipline or take other appropriate action against any member of the school community who is found to have violated this policy. Complaints alleging discrimination or harassment must be handled in accordance with the procedures set forth in Miss. Admin. Code 7-3: 99.1, Mississippi State Board of Education Policy Manual, Part 3, Chapter 99, Rule 99.1.

Definitions

School Community includes but is not limited to all students, school employees, contractors, unpaid volunteers and other visitors.

School Employees includes but is not limited to all teachers, residential life professionals, support staff, administrators, bus drivers, custodians, cafeteria workers, coaches, school board members and agents of the school.

Harassment means verbal or physical conduct based on an individual's actual or perceived race, religion (creed), color, national origin, marital status, sex, **sexual orientation and gender identity**, or disability and which has the purpose or effect of substantially interfering with educational performance or creating an intimidating, hostile or offensive environment.

Harassment can include any unwelcome verbal, written or physical conduct, which offends, denigrates, or belittles any individual because of any of the characteristics described above. Such conduct includes, but is not limited to unsolicited derogatory remarks, jokes, demeaning comments or behavior, slurs, mimicking, name calling, graffiti, innuendo, gestures, physical contact, stalking, threatening, bullying, extorting or the display or circulation of written materials or pictures.

Examples of specific types of prohibited harassment are listed below

- **Disability Harassment** includes harassment based on a person's disabling mental or physical condition and includes any unwelcome verbal, written or physical conduct, directed at the characteristics of a person's disabling condition, such as imitating manner of speech or movement, or interference with necessary equipment.

- **Marital Status Harassment.** Harassment on the basis of marital status is unwelcome, verbal, written or physical conduct, directed at the characteristics of a person's marital status, such as comments regarding pregnancy or being an unwed mother or father.

- **National Origin Harassment** may include unwelcome, verbal, written, or physical conduct directed at the characteristics of a person's national origin, such as negative comments regarding surnames, manner of speaking, customs, language, or ethnic slurs.

- **Peer Harassment** includes, but is not limited to, unwelcome attention from peers or other individuals and includes such actions as name calling, threatening gestures, unwanted physical contact, vandalism of personal property, and filing a false complaint.

- **Racial and Color Harassment** can include unwelcome verbal, written or physical conduct directed at the characteristics of a person's race or color, such as nicknames emphasizing stereotypes, racial slurs, comments on manner of speaking, and negative references to racial customs.

- **Religious (Creed) Harassment** may include verbal, written, or physical conduct directed at the characteristics of a person's religion or creed, such as derogatory comments regarding surnames, religious clothing, religious slurs, or graffiti.

- **Sexual Orientation and Gender Identity Harassment** may include unwelcome verbal, written, or physical conduct directed at the characteristics of a person's identity in terms of sexual orientation or gender, such as offensive or derogatory remarks about someone's sexual orientation, or offensive or derogatory remarks about a person's transgender status, gender transition, or gender expression. Repetitive and intentional misuse of a person's preferred name and pronouns can qualify as gender identity harassment.

- **Sexual Harassment** means unwelcome sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature when:
 - (A) Submission to that conduct is made either explicitly or implicitly a term or condition of a student's education or an individual's employment.
 - (B) Submission to or rejection of such conduct by an individual issued as a component of the basis for decisions affecting that individual.
 - (C) The conduct has the purpose or effect of substantially interfering with an individual's educational performance or creating an intimidating, hostile or offensive educational environment.

This applies whether the harassment is between people of the same or different gender. Sexual harassment can include unwelcome verbal, written or physical conduct directed at or related to a person's gender, such as sexual gossip or personal comments of a sexual nature, sexually suggestive or foul language, sexual jokes, whistling, spreading rumors or lies of a sexual nature about someone, demanding sexual favors, forcing sexual activity by threat of punishment or offer of educational reward, obscene graffiti, display or sending of pornographic pictures or objects,

offensive touching, pinching, grabbing, kissing, hugging, or restraining someone's movement in a sexual way. Both MSMS employees and students are prohibiting such behavior.

Commented [AN1]: love the use of repetitive and intentional misuse. I think you've got a really strong bill here
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